

October 23, 2024

1:30 P.M. Civil Case Management

23CF14071	LVNV FUNDING LLC v BRYON GOODMAN	The matter has conditionally settled expressing the settlement would be completed and a dismissal filed by 9/15/24. A Dismissal has not been filed, and there is no showing of good cause. The matter is dismissed pursuant to Rule of Court 3.1385(b).
23CF14300	BANK OF AMERICA N.A. v ELLIOTT	Plaintiff has not filed a Proof of Service of the Summons and Complaint. Rule of Court 3.740(d) requires the Complaint to be served within 180 days after its filing. Plaintiff is ordered to have proof of service on file before the next Case Management Conference, set as an OSC re Dismissal on March 5, 2025, at 1:30 p.m. in Dept. 4. The Court will send notice.
23CF14301	BANK OF AMERICA N.A. v ELLIOT	Plaintiff has not filed a Proof of Service of the Summons and Complaint. Rule of Court 3.740(d) requires the Complaint to be served within 180 days after its filing. Plaintiff is ordered to have proof of service on file before the next Case Management Conference, set as an OSC re Dismissal on March 5, 2025, at 1:30 p.m. in Dept. 4. The Court will send notice.
24CV47448	TURNER, ET AL v SANFILIPPO, ET AL	An Answer has been filed by Defendant Sanfillippo but not served. Defendant Frazier Land & Property has not been served; plaintiff has filed a declaration of due diligence that establishes further efforts at service are necessary. Plaintiff is directed to have an answer/default/dismissal on file as to Frazier Land and defendant Sanfillippo is directed to have proof of service on file prior to the next Case Management Conference scheduled for March 5, 2025, at 1:30 p.m. in Dept. 4. Court will send a copy of the minute order.
24CV47449	RICE v NELSON	The case is not at issue and there are pending motions regarding the pleadings. The next Case Management Conference is set for January 8, 2025, at 1:30 p.m. in Dept. 4.